HILCHOT SHABBAT

Bones, Flies & Tea Bags: Borer in Real Life — Hilchot Shabbat

Given Thursday 30 April 2026 · מלאכת בורר — Siman 319: Seifim 4,5,8

Topic: מלאכת בורר — Selecting and Sorting **Siman:** (319) שיט **Seifim covered tonight:** Seif 4 (main focus), Seif 5, Seif 8 **Source text:** Shulchan Aruch with Bi'ur Halacha and Mishna Berura

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Recap: What We've Covered in Borer So Far

The Three Selecting Melachot

- **Borer** — selecting by hand
- **Meraked** — sifting through a sieve
- **Zoreh** — winnowing with wind

The Three Conditions for Permitted Selection on Shabbat

1. **Le'altar / Samuch L'Seudah** — for immediate use (a few minutes, very close proximity)
2. **B'yad** — using your hand (cutlery is considered an extended hand; some Poskim permit even a peeler)
3. **Ochel from Pesoleth** — taking the wanted from the unwanted, never the reverse

Key Principles Established Previously

- **Two edible foods:** Borer applies even when both items are edible if you only want one now (Rama, accepted halacha)
- **Borer = selecting AND sorting** (even sorting for later use, where you take neither now)
- **Definition of a mixture (ta'arovet)** — size, color, type all factor in
- **Gidulei Karka:** Borer applies to all things, not only items that grow from the ground
- **Removing top items to reach lower items** — permissible
- **Silverware on Shabbat** — permissible (combination of four reasons)

Seif 4 — The Core Halacha

The Text of the Shulchan Aruch

הבורר פסולת מתוך אוכל אפילו בידו אחת חייב

Selecting waste from edible food — **even with one hand alone — you are liable.**

Practical Application

- Bowl of shelled pistachios with some shells left in by the person who shelled them

- A classical mixture of ochel (pistachios) and pesoleth (shells)
- Even with one hand, even using a hand only, even for immediate use — you are **chayav** for taking out the shells
- The third condition is absolute: you must take the food from the waste, not the waste from the food

The Question of Two Edible Items

- Pistachios + peanuts, only want pistachios now
- Shulchan Aruch and Rambam are equivocal
- **Halacha:** the unwanted is treated as a kind of "pesoleth" — you must take what you want, not remove what you don't want

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The Rama's Addition

ואפילו האוכל מרובה ויש יותר טורח בברירת האוכל אפילו הכי לא יברור הפסולת אפילו כדי לאכול לאלתר

Why the Rama Emphasizes This

- Even if there is **more food than waste** and it would be far more bothersome to remove the food
- Even if removing 10 shells from a bowl of nuts is much easier than picking out all the nuts
- **Still forbidden** on Shabbat to remove the pesoleth

The Contrast with Yom Tov

	Shabbat	Yom Tov
Default rule	Always take ochel from pesoleth	Reduce tircha (bother)
More food than waste	Take out all the food	Take out the waste (less bothersome)
Practical	No tircha consideration	You should follow the easier path

Important nuance from Robert's question: On Yom Tov, removing the easier path is not just permitted but the **proper way** — you should be ma'amit tircha (reducing bother), not just permitted to do so.

The Bi'ur Halacha — Two Major Questions

Question 1: Selection at the Moment of Eating (Derech Achila)

The principle: **derech achila** (the way of eating) is what allows the three conditions of selection in the first place.

Universally agreed: Selecting in the mouth is fine.

- Fish or chicken with bones in your mouth → take out the bone in your mouth → permitted (it's during the act of eating)

The question: What about taking out the waste **literally a second before eating**?

- Not "le'altar" in the few-minutes sense
- Not the standard immediate proximity we've been discussing
- The actual moment of bringing the food to your mouth — you pluck out the bone

The Machloket of the Acharonim

Position	Posek	Reasoning
Permitted	Maharit Abulafia (R' Yitzchak Abulafia, Tzfat, 1600s)	This is derech achila — an extension of selection in the mouth
Forbidden	Maharitatz (R' Yom Tov Tzahalon, Tzfat, 1600s)	Only in the mouth itself counts; before is still borer

The Birkei Yosef (Chida, ~250 years ago) brings this dispute. The Bi'ur Halacha later argues this is actually a Rishonim machloket — Ramban with the lenient view, Rosh with the stricter view.

Halacha L'Maaseh

- **Both Sefardi and Ashkenazi poskim:** generally do not rely on this alone
- It can be used as an **additional reason for leniency** (snif l'heter) when combined with other factors
- Don't take out waste from the good even just before eating, based purely on this principle

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Question 2: A Fly in the Soup — Three Solutions

Setup: a fly fell into your soup or tea. You don't want it. Can you take it out?

Solution 1 — Maharitatz (relying on derech achila)

- Just before drinking, take out the fly
- **Rejected** — we don't take this approach as a primary heter

Solution 2 — Ein Borer B'Lach (the major Sephardi principle)

There is no borer when a solid is mixed with a liquid.

- **Logic:** Borer requires a ta'arovet (mixture). When a solid sits in liquid and is **clearly discernible**, it is not considered mixed with the entire body of liquid
- **Maharitatz cites the pasuk:** וגם את הצרעה ישלח — also, He will send away the wasp (Eikev). You may "send away" the fly.
- **Limitation:** Only works for **one, two, or three** discernible solids. Twenty croutons in soup would be enmeshed and considered a mixture.

Posek	Position on Ein Borer B'Lach
Maharitatz	Permitted
Taz (R' David Segal, ~400 years ago)	Forbidden — still a mixture
Chacham Ovadia	Permitted
Ben Tzion Abba Shaul	Permitted
All Sefardi poskim	Permitted
Some Ashkenazi poskim	Permitted (others follow Taz)

Solution 3 — Take the Fly with Surrounding Liquid (Universal)

Everyone agrees this is permitted.

- Use a spoon and lift the fly out **together with some surrounding soup**
- **Logic:** The mixture is not the fly with the entire bowl — it is the fly with a small area of soup around it
- By removing **the entire mixture** (fly + immediate surrounding liquid), you are not taking pesoleth from ochel; you are removing the whole ta'arovet
- Works only when there are **few separate items** — not many enmeshed items

Robert's Question: Oil Floating on Soup

- Removing the oil **with the top layer of soup** → certainly fine (entire mixture removed)
- Removing the oil alone using "ein borer b'lach" logic → **probably not** — the principle applies to solid + liquid, not two liquids, even if they don't physically blend
- Rabbi Kada to confirm and follow up

Summary Table — Solutions for Fly in Soup

Approach	Status	When Applicable
Take it out alone (derech achila reason)	Not relied upon	—
Take it out alone (ein borer b'lach)	Permitted for Sefardim, machloket for Ashkenazim	One/few discernible solids in liquid
Take it out with surrounding liquid	Universally permitted	Few separate items in liquid

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The Major Principle — Bones in Fish & Chicken (Guf Echad)

The Problem

- Big fish at a sheva brachot, salmon with bones, chicken with bones, watermelon with seeds

- People routinely remove the spine of the fish before serving
- All the rules above seem to forbid this

The Ma'amar Mordechai's Stringent Position

R' Mordechai Karmi (Turkey, ~300 years ago):

- Removing the spine of a fish to serve guests = **boreir pesoleth from ochel** = chayav (Torah liability)
- Even taking out a single bone before eating = forbidden (he holds like Maharitatz, not Abulafia)
- **His allowance:** Take out a bone **and suck it** — by deriving hana'ah from it, you make it ochel
- Otherwise, leave the bones in and let each person take their own fish from the bones

The Bi'ur Halacha's Difficulty

- He cannot understand why the world is not careful about this
- Especially when food is being prepared in the kitchen 5–10 minutes before eating, even there bones are routinely removed

I sought to find a merit for the practice — "**אמרתי לחפש להם זכות**"

The Bi'ur Halacha's Major Heter — Guf Echad

והוא משום דעצמות והבשר הם חיבור אחד

Bones and flesh are one composition.

- The fish with its bones, the chicken with its bones — **this is how they are made**
- They were **not man-mixed**; they are a single naturally-formed unit
- He cites the **Magen Avraham in the name of the Maharshal:** the same logic for nuts and shells — "מין אחד הוא" (it is one entity)
- Therefore, removing the bones is **תיקון אוכל בעלמא** — merely the rectification/preparation of food
- Not an act of borer at all — borer applies to **mixtures**, and a guf echad is not a mixture

The Mishna Berura's Position

Crucially, two seifim later (in Seif 6's Mishna Berura), he brings this not just as a justification of the practice but as **a fully accepted opinion:**

דדבר שגדל עם הקליפה ומתקנו כך אוכל הוא ולא שייך בורר בזה

This is why even some Ashkenazi poskim adopt this principle. Sefardim (Ben Ish Chai, Rav Ovadia, Rav Ben-Tzion Abba Shaul) all rule that this is a valid heter.

The Critical Distinction

Permitted (Guf Echad)	Forbidden (Man-Made Mixture)
Removing bones from intact fish/chicken	After the meal, sorting separated bones from chicken pieces
Removing watermelon seeds from a slice	Mixed bones with mixed chicken pieces on a serving plate
Pulling stem off a tomato	A bowl of separated nuts and shells
Peeling a cucumber	—

The moment items are **separated and remixed**, it becomes a regular mixture and the regular borer rules apply.

Five Heterim for Removing Bones from Fish/Chicken

A practical summary of all the options:

1. **Take the fish from the bone** (rather than the bone from the fish) — always permitted in close proximity
2. **Take out the bone and suck it** — turning it into ochel through hana'ah (Ma'amar Mordechai)
3. **Edible/soft bones** — already considered ochel themselves
4. **Take out bones immediately as you eat** — Maharit Abulafia / potentially Ramban (snif l'heter only)
5. **Guf Echad** — this is one composition, not a mixture; removing bones is tikun ochel and not borer at all (Bi'ur Halacha, accepted Sephardi practice)

Practical Range of Guf Echad Applications

- Bones from fish and chicken
- Seeds from watermelon
- Stems from tomatoes
- Peel from cucumbers
- **Any natural composition where the unwanted is part of the same naturally-grown unit as the wanted**

As long as you are doing it samuch l'se'udah (close to the meal), it is tikun ochel be'alma and permitted.

Seif 5 — The Turmosin Beans (The Reverse Case)

The Text of the Shulchan Aruch

הבורר תורמוסין מתוך פסולת שלהם חייב

Selecting turmosin (lupine beans) from their shells — **chayav.**

This appears to be the **opposite** of everything we have learned: he removes beans (the food) from the shells and is liable. Why?

The Rambam's Explanation

מפני שהפסולת שלהם ממתקת אותם כששלקו אותן עמהם ונמצא כבורר פסולת מתוך אוכל

The unique feature of turmosin beans:

- They must be cooked seven times, with the water changed each time, to become edible
- The beans themselves are intensely bitter
- During the cooking process, the **shells have some sweetness** while the **beans are still bitter**
- **Relatively speaking,** at this stage the **shells are more "ochel"** and the **beans are more "pesoleth"**
- Therefore taking the bitter beans from the sweeter shells is **borer pesoleth from ochel** → chayav

The Concept of "Relative Ochel and Pesoleth"

The whole framework of borer is **relative** to the moment, not absolute:

- Whatever is wanted now = ochel
- Whatever is unwanted now = pesoleth
- This even overrides what something will become later in a process

If you wanted the beans (e.g., to use as game pieces), removing them would be permitted as ochel from pesoleth. The chiyuv exists specifically when the goal is to ultimately consume the shells.

(Note: Rashi gives three other explanations of this Mishna, but they are difficult and not the practical halacha.)

Seif 8 — Borer with a Utensil (and Psik Reishei)

The Text

you may not soak certain seeds in water to separate seeds from chaff — **אין שורין את הכרשינין**
(the water functioning as a kli for separation)
and you may not rub them by hand to remove the chaff (k'borer) — **ולא שפין אותם ביד**

The Critical Allowance

אבל נותנן בכברה אף על פי שנופל הפסולת דרך נקבי הכברה

You may place them in a sieve-like trough — even though the chaff inevitably falls through the holes.

The Question

This is a classic case of **psik reishei** (inevitable consequence) for borer. The chaff will fall through automatically. Why is this not forbidden?

The Ran's Answer

The Ran reads the Mishna narrowly — that the chaff doesn't always fall through.

The Major Principle (Most Rishonim and the Halacha)

When you are performing a natural, normal action — not the melacha itself — the inevitable consequence does not make it forbidden.

This is the principle of:

- The Magid Mishneh on heating water (where dirt separates as a side effect)
- Walking past a motion-sensor light at night
- Any case where the **act being performed** is fundamentally something else, and the borer/melacha is incidental

The animal's natural feeding utensil happens to have holes. You are doing an act of **feeding the animals**, not an act of **borer**, even though selection happens automatically.

Practical Applications

Salt Shaker with Rice Grains

- People put rice in salt shakers to keep the salt loose
- When you shake out salt, the rice stays inside
- **Permitted** — you are doing an act of **salting your food**, not an act of borer
- The selection happens automatically through the natural action

Tea Bag Removal

- You made your tea (subject to all the bishul rules learned previously)
- You want to remove the tea bag
- **Permitted to lift it out** — you are performing an act of **removal/extraction**
- Inevitably a few drops will come out — this is incidental, not the goal

What is Forbidden — Squeezing Drops Out

- Lifting the tea bag out and **holding it over the cup to drain it**
- Letting it dangle to extract the liquid back into the cup
- **Forbidden, at least mid'rabbanan** — here you are actively using the tea bag as a separation tool
- The act is no longer "extraction" but **separation of liquid from solid**

The Fundamental Principle

When the act you are performing is fundamentally a different action — feeding, salting, extracting — and the borer is automatic and incidental, **the act is permitted even if the separation is inevitable.**

This is distinct from cases where the apparatus itself is being used as a tool of separation (water as a kli for soaking, a hand specifically rubbing to remove chaff, a tea bag deliberately positioned to drain).

Comprehensive Summary

Seif 4 — Core Rules

- Cannot take pesoleth from ochel, even with one hand
- Even when more food than waste, even when more bothersome — Shabbat unlike Yom Tov
- Even just before eating (derech achila) — not relied upon as sole heter
- Solid in liquid (ein borer b'lach) — permitted for Sefardim
- Take the entire small mixture (fly + spoonful) — universally permitted
- **Guf Echad** — removing bones, seeds, stems, peels from naturally-formed compositions is tikun ochel, not borer

Seif 5 — Turmosin (The Exception That Proves the Rule)

- Borer is relative to current circumstances
- Even removing what will eventually be the food can be borer if it is currently the pesoleth (the bitter beans during cooking)

Seif 8 — Inevitable Selection in Natural Acts

- Acts whose primary purpose is not borer are permitted even if selection is inevitable
- Sieve trough for animals, salt shaker with rice, tea bag removal
- Forbidden to actively use the apparatus to separate (draining the tea bag)

Coming Up Next

- **Seifim 6 and 7** — Zoreh (winnowing): the laws of separating with wind
- **Seif 9 onwards** — moving from Borer into Meraked (sieving)
- Different levels of sieving for water, wine, and other liquids
- The de'oraita / de'rabbanan distinction in using sieves and water as separation tools

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Shabbat Shalom

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